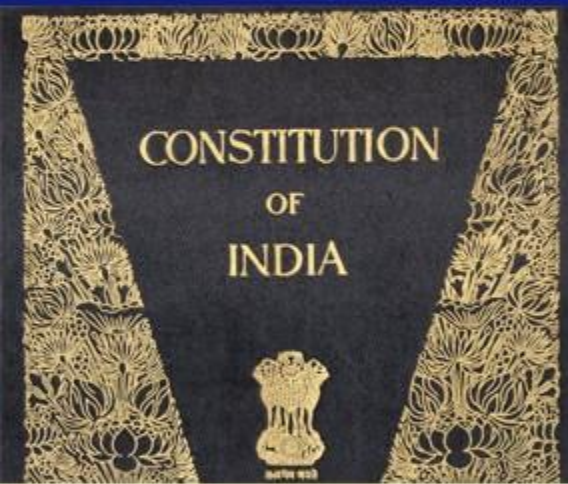


INDIAN POLITY



MODULE - 8

**GOVERNMENT OF INDIA
ACT 1935**

INDIAN POLITY

GOVERNMENT OF INDIA ACT, 1935

PREVIOUS YEARS MAINS QUESTIONS

Q 1 What are the salient features of the Government of India Acts of 1858 and 1909? (2007 Mains)

Q 2 The reforms of 1909 introduced a cardinal problem and ground of controversy at every revision of Indian electoral system? (2003)

HINTS

- 1 Principle of communal representations and separate electorate
- 2 Religion based divisive politics;
- 3 Reservation system in Indian constituencies.
- 4 Vote-bank politics, separatist tendencies in the minds of people- "us vs them" attitude
- 5 Religious intolerance, vigilantism, lynchings- root can be traced here.

GOVERNMENT OF INDIA ACT, 1935

COMMUNAL AWARD



YERAVADA JAIL

- In August 1932, Ramsay Mac Donald, the British Prime Minister announced a scheme of representation of minorities, which came to be known as the Communal Award.
- The award not only continued separate electorates for the Muslims, Sikhs, Indian Christians, Anglo Indians, Europeans, but also extended it to the depressed class of society.
- Gandhiji was distressed over this extension of the principle of communal representation to the depressed classes and undertook fast unto death in Yeravada jail to get the award modified.

GOVERNMENT OF INDIA ACT, 1935

COMMUNAL AWARD



MOCK QUESTION

Analyse the differences in ideology that existed between Ambedkar and Gandhiji over the issue of untouchability and caste system.

- *At last, there was an agreement between the leaders of the Congress and depressed classes which came to be known as Poona Pact.*
- *It should be noted that the Act of 1935, provided separate representation for wide section of Indian and thus created a serious hurdle in the way of building up the National unity.*
- *The makers of the future constitution found it almost insurmountable to overcome this hurdle even after the partition of separate State of Pakistan.*

GOVERNMENT OF INDIA ACT, 1935

BACKGROUND OF THE ACT



The Government of India Act 1935 derived material from four sources:

- Report of the Simon commission
- Discussions at the Round Table Conferences
- White Paper of 1933
- The Report of the Joint Select Committee.

FIND OUT....

Who was the other most prominent person in Simon Commission who was supposedly very sympathetic to Indian interests?



GOVERNMENT OF INDIA ACT, 1935

FEATURES OF THE ACT

- 1** This Act proposed an All India Federation consisting of provinces and princely States as individual units.
- 2** The Act created federal and provincial autonomy by dividing the powers between the Centre and units in terms of three list- Federal List, Provincial List and the Concurrent List.
- 3** While under all the previous Acts the Government of India was treated as a Unitary this act prescribed a federation taking the provinces and Indian states as individual units.
- 4** It abolished the dyarchy in provinces which was considered to be a failure of the 1919 Act and it introduced provincial autonomy in the place of dyarchy.
- 5** The provinces were allowed to act as autonomous units of the administration in their defined sphere.
- 6** Moreover, the Act introduced responsible Government in the provinces that is the Governor were required to act with the advice of the Ministers responsible to the provincial legislatures.

INDIAN POLITY

GOVERNMENT OF INDIA ACT, 1935

FEATURES OF THE ACT



7 The residuary powers were given to the Viceroy, which is the unique characteristic of this Act.

8 It provided for the adoption of the dyarchy at the Centre. Consequently the federal subject were divided into reserved and transferred subjects. However, this provision of the Act do not come into operation at all.

9 It introduced Bicameralism in 6 out of 11 provinces, thus the legislatures of Bengal, Bombay, Madras, Bihar, Assam and the United Provinces were made Bicameral. However, many restrictions were placed on them.

GOVERNMENT OF INDIA ACT, 1935

MORE ON PROVINCIAL AUTONOMY

- The Provincial autonomy means two things.
 1. The Provincial Governments is wholly responsible to the Provincial legislatures.
 2. It was free from outside control and interference in a large number of matters.
- However, the degree of the autonomy was introduced at the provincial level was subject to important limitations- the Provincial Governors retained important reserve powers.
- The powers of the Governor to act in his own discretion was laid out in the 1935 Act. Through this it can be said that the Act of 1935 retained control of Central Government over the provinces through the Governor.
- In such matters, the Governor was to act without the ministerial advice and this was a serious defect of provincial autonomy.

GOVERNMENT OF INDIA ACT, 1935

FEATURES OF THE ACT

10 It further extended the principle of communal representation by providing separate electorates for depressed classes (Scheduled Caste), women and labour.



11 It abolished the Council of India which was established by the Government of India Act of 1858. This Council was established to assist the Secretary of State for India.

12 It extended franchise-about 10% of the total population got the voting right.

13 It provided for the establishment of the Reserve Bank of India to control the currency and credit of the country.

GOVERNMENT OF INDIA ACT, 1935

FEATURES OF THE ACT



- 14** It provided for the establishment of federal Court to interpret the act and adjudicate the disputes related to the federal matters.
- 15** This federal court was given exclusive original jurisdiction to decide disputes between the Centre and constituent units. It also had the jurisdiction to grant special leave to appeal.
- 16** It provided for the establishment of not only a Federal Public Service Commission but also Provincial Public Service commission and Joint Public Service commission for two or more provinces.

GOVERNMENT OF INDIA ACT, 1935

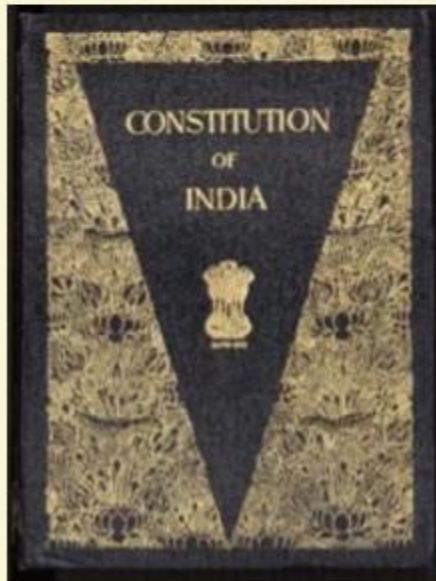
ANALYSIS OF THE ACT

- 1** The proposal for setting up the federation of India did not materialize i.e. the federation envisaged by the Act of 1935 never came into being.
- 2** This is because the federation described under this Act took into consideration the Provinces and Indian States as individual units, but it was optional for the Indian States to join the federation and since the rulers of the Indian States never gave their consent, the federation never came into being.
- 3** The provincial autonomy was an important concept of this Act and it came into effect since April 1937, but it got discontinued in 1939.
- 4** Also the Governor of the provinces got the power to act “in his discretion” without adhering to the ministerial advice in certain matters. This power gave the Central Government to indulge into the matters of the provinces.

GOVERNMENT OF INDIA ACT, 1935

ANALYSIS OF THE ACT

5 This Act was yet another step in dividing India along the communal lines and this furthered communal tendencies that was present in the Indian society.



6 During the phase of making the constitution of India, this communal tendencies that was present amongst the people of India prove to be the biggest hurdle for the leaders.

7 However, this act was most lengthiest and detailed document produced by the British and this Act proved to be a cornerstone for the development of Indian constitution in the later times.

INDIAN POLITY

GOVERNMENT OF INDIA ACT, 1935

ANALYSIS OF THE ACT



8 Some parts of the Act like the federal bank, federal court served as the foundation for the RBI and Supreme Court in the post independent India.

9 Another significant aspect of this Act is the division of legislative powers into three list like Federal, Provincial and Concurrent. The Idea behind this division was responsible for the later Constitution of India to proceed along the same lines.

GOVERNMENT OF INDIA ACT, 1935

ANALYSIS OF THE ACT



10 It is to be noted that the Dominion Status, which was promised by the Simon Commission in 1929 was not conferred by the Government of India Act, 1935.

11 The Act was obstructing the development of the nation of India and therefore Jawaharlal Nehru called it "Machine with All Breaks, No Engine".

GOVERNMENT OF INDIA ACT, 1935

PREVIOUS YEARS MAINS QUESTIONS

Q 3 How did the Government of India Act, 1935 mark a point of no return in the history of constitutional development in India? (2006 Mains)

HINTS

- 1 Federation setup; Division into 3 lists-
groundwork of 7th Schedule
- 2 Provincial autonomy
- 3 Critical institutions like RBI, SC, UPSC.
- 4 Lack of “Dominion Status” accelerated the
movement towards a “no-return” point
- 5 Divisive religion-based politics took deeper
roots.

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